

APRIL 27, 2026
Dept. 9
Probate Tentative Rulings

11.	26PR0066	MATTER OF HALL REVOCABLE TRUST
Petition for Removal, etc.		

Petitioner and Respondent are the children of settlor Adelaide Hall and both are beneficiaries of the Trust, which is attached to the Petition as Exhibit A.

In 2025 settlor executed a Fourth Amendment to the Trust which is attached to the Petition as Exhibit B. The Fourth Amendment removed Petitioner as successor co-trustee, and established Respondent as the sole successor trustee. The Fourth Amendment to the Trust also gave Petitioner the right to receive certain real property that is an asset of the Trust “at fair market value . . . as part of his one-half (1/2) share of the trust”, to be distributed to Petitioner 30 days after settlor’s death.

Petitioner asserts that he has exercised his option to receive the real property but that Respondent has refused to transfer the property, in violation of the terms of the Trust. In the interim, Respondent’s attorney informed Petitioner that no distribution could occur until 120 days after the Notification of Trustee was sent to Petitioner. Petition, Exhibit C. Petitioner attempted to meet with Respondent’s attorney in January, 2026, but the meeting was cancelled, and in February, 2026, Petitioner was informed that Respondent’s attorney was on vacation. Later, Respondent’s attorney claimed that Petitioner had cancelled the meeting, but Petitioner asserts that it was Respondent’s attorney who cancelled the meeting.

In February, 2026, Respondent informed Petitioner that he could pick up furniture from the property, but that the time for Petitioner to acquire the property had expired, even though the Trust does not put any time limit on the period for Petitioner to exercise his option. Further, the 120 days referenced in Respondent’s letter as the period during which no distributions could be made would not have run until March, 2026.

Petitioner believes that Respondent is attempting to sell the property to a third-party buyer in violation of the terms of the Trust.

The Petition alleges breach of fiduciary duty in violation of Probate Code §§ 16002, 16003 and 16004. Petitioner further seeks immediate suspension and ultimately, removal of the trustee pursuant to Probate Code § 16420(a) and appointment of a professional fiduciary. Petitioner also requests the Court to order distribution of the real property in accordance with the terms of the Trust, and to enjoin the sale of the real property. Petitioner requests attorneys’ fees.

TENTATIVE RULING #11:

TENTATIVE RULING #11: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, APRIL 27, 2026, IN DEPARTMENT NINE.

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IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.